

26STCV05498 26STCV05498

County: los-angeles

Division: Civil Law and Motion

Department: 730

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Case Number: 26STCV05498 Hearing Date: July 21, 2026 Dept: 730

Superior Court of California

County of Los Angeles

Department 730

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SEA ROSE INVESTMENTS,

Plaintiff,

vs.

8053 CANOGA PARTNERS, LLC, et al.

Defendants.

Case No.:

26STCV05498

Hearing Date:

July 21, 2026

ORDER DENYING MOTION TO COMPEL ARBITRATION

I. BACKGROUND

Plaintiff Sea Rose Investments ("SR") and Defendant Skytel Properties LLC ("Skytel") co-owned and managed Defendant 8053 Canoga Partners, LLC, ("8053") at the subject premises. Defendant Dhirubhai Patel ("Dhirubhai"), through Skytel, allegedly reduced the rent of subject property's sole tenant, Discount Caregivers ("DC"), without SR's consent. SR sued Defendants for seven causes of action, including breach of written contract.

On May 19, 2026, Defendants Skytel, DC, Dhirubhai, and Akash Patel ("Akash") (collectively "Moving Defendants") filed the instant motion to compel arbitration and stay litigation. SR opposed. Moving Defendants replied.

II. LEGAL STANDARD

Under both the Federal Arbitration Act and California law, arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (*Winter v. Window Fashions Professions, Inc.* (2008) 166 Cal.App.4th 943, 947.) The party moving to compel arbitration must establish the existence of a written arbitration agreement between the parties. (Code Civ. Proc. § 1281.2.1) This is usually done by presenting a copy of the signed, written agreement to the court. "A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference." (Cal. Rules of Court, rule 3.1330.) The moving party must also establish the other party's refusal to arbitrate the controversy. (§ 1281.2.) The filing of a lawsuit against the moving party for a controversy clearly within the scope of the arbitration agreement affirmatively establishes the other party's refusal to arbitrate the controversy. (*Hyundai Amco America, Inc. v. S3H, Inc.* (2014) 232 Cal.App.4th 572, 577.)

"Code of Civil Procedure section 1281.2 requires a trial court to grant a petition to compel arbitration 'if the court determines that an agreement to arbitrate the controversy exists.'" (Avery v. Integrated Healthcare Holdings, Inc. (2013) 218 Cal.App.4th 50, 59 (Avery) (quoting CCP § 1281.2).) Accordingly, "when presented with a petition to compel arbitration, the court's first task is to determine whether the parties have in fact agreed to arbitrate the dispute." (Ibid.) A petition to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (Id. at 71.) As with any other specific performance claim, "a party seeking to enforce an arbitration agreement must show the agreement's terms are sufficiently definite to enable the court to know what it is to enforce." (Ibid. [internal citations omitted].) "Only the valid and binding agreement of the parties, including all material terms well-defined and clearly expressed, may be ordered specifically performed." (Ibid.) An arbitration agreement "must be so interpreted as to give effect to the mutual intention of the parties as it existed at the time of contracting, so far as the same is ascertainable and lawful." (Civ. Code § 1636.) The language of the contract governs its interpretation if it is clear and explicit. (Civ. Code § 1368.) If uncertainty exists, "the language of a contract should be interpreted most strongly against the party who caused the uncertainty to exist." (Civ. Code § 1654.)

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 972.) It would then be plaintiff's burden, in opposing the motion, to prove by a preponderance of the evidence any fact necessary to her opposition. (Ibid.) "In these summary proceedings the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (Ibid.)

III. DISCUSSION

Moving Defendants have not complied with all service requirements for this motion. Section 1290.4, subdivision (b) requires a petition to compel arbitration under section 1281.2 to be served on the parties as provided in their arbitration agreement or, if no method was agreed to, in the same manner required for service of summons, if the party to be served has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision. (*Miranda v. 21st Century Ins. Co.* (2004) 117 Cal.App.4th 913, 928.)

Moving Defendants rely on two separate arbitration agreements to provide authority to compel arbitration: an arbitration provision in the Operating Agreement between Skytel and SR and a lease between DC and 8053 (via assignment from previous lease holders). (Mot., Rapaport Decl. ¶¶ 3, 5, Ex. 1-2.) While SR was served with this motion, and Skytel and DC are moving parties to this motion, there is no proof of service on 8053. Even though 8053 has yet to appear, a motion or petition to compel arbitration requires service on all parties to the relevant arbitration agreements.

As the Court denies this motion on procedural grounds, the Court does not reach the merits of this motion.

V. CONCLUSION

Moving Defendants' Motion to Compel Arbitration is DENIED.

SR is ordered to give notice.

DATED: July 21, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at SMCDEPT730@lacourt.org with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.